**August 7, 2026**

Chair Allan Lazo
Land Conservation and Development Commission
635 Capitol St., Suite 150
Salem, OR 97301

Delivered via email: housing.dlcd@dlcd.oregon.gov

Dear Chair Lazo and Members of the Land Conservation and Development Commission,

We appreciate the state's efforts to facilitate housing, and the opportunity to comment on proposed Middle Housing Oregon Homes rules. Issues of concern to us are addressed below, and in more detail within attachments.

Requirements and process alignment

We request that the core set of requirements for Oregon Homes proposals be simplified and aligned with those used for other housing reviews. If we want to encourage use of pre-approved plans for a range of ordinary home types, we should not ask for anything extraordinary in exchange.

As drafted, rules create a complex and specialized review, functioning like a Planned Development review despite its characterization as ministerial. Qualifiers involve housing type variables; minimum and maximum site sizes based on per-unit land area; minimum and maximum unit counts; unit size limits; average slope restrictions; natural resource and hazard considerations; demolition timing; a requirement that lots be vacant (which discourages retention of existing, typically more affordable homes); unique tree preservation and design requirements, and particular site amenities. Verifying all these factors will demand significant staff time and effort.

Characterization of this review as ministerial despite its considerable and unique requirements forces strained local budgets to subsidize the work and further stresses staff capacity. Although state staff suggests that assigning the burden of proof to applicants as reflected in 660-047-0020 (5) will reduce local effort, LUBA has confirmed that local governments must determine whether

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that burden is met (Mingo v. Morrow County, 65 Or LUBA 122 (2012)). This means that we share the burden.

State statutes and rules increasingly blur the differences between ministerial and administrative decision types. This compounds risk and complexity for local land use regulation. If the Oregon Homes rules remain as intensive as currently proposed, conditions of approval will be unavoidable, especially for requirements such as those "resulting from a traffic impact analysis during the development review processes," as reflected under 660-047-0020 (7). The intended ministerial review is not the accepted procedure for application of conditions historically. We ask that requirements be simplified/reduced commensurate with the intended ministerial review. Ideally, local jurisdictions would be able to apply clear and objective requirements they already have in place for similar developments in large part.

Single lot as site, concurrent reviews

Definitions tie an Oregon homes application to a single lot, as with Middle Housing. Any intent to allow concurrent review of multiple Oregon Homes applications, or concurrent review with other actions entirely, should be clarified so that applications reviewed at the same time remain distinct. This is important to protect potential to appeal one Oregon Homes development versus all, and avoid conflicting procedural requirements for notice, hearing or appeal rights tied to other actions.

Tree standards

We ask that tree protection be left to local regulation. Tree standards that differ from one application type to another may confuse applicants and staff, and increase the risk of inconsistent application.

Attached are more detailed remarks on specific draft amendments to Division 47. Minimal comments on state-proposed amendments to Division 46 are also attached.

Thank you again for the opportunity to comment.

Sincerely,
Anne Kelly, Senior Planner
Washington County Land Use & Transportation
Planning & Development Services, Community Planning

**Requested changes to Division 47**

The following text includes requested edits. Where rule intent is unclear, the request may be general. Iin other cases, specific revisions are suggested.

Plain black text reflects language based on the state's latest draft. Red underline or ~~strikeout~~ shows specific recommended revisions. *Italic* text explains the reason for each requested change.

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**660-047-0010** Definitions

(1) "Building height" means the vertical distance from grade plane (measured from the lowest ground surface a maximum of five feet from the building wall) to the average height of the highest roof surface ~~(measured to the tallest point of the roof of the building)~~.

*Issues/requested changes:*

- *The current definition of "building height" is unclear and needs to be objective. It describes height as the average of the highest roof surface but then adds that it is measured to the tallest roof point, which contradicts the idea of using an average and creates confusion.*

- *The proposed definition may also conflict with local building height definitions. Local definitions often provide for flexible measurement methods based on roof type, building orientation, and site conditions. Using a different measurement for "Oregon Homes" would force staff to track multiple methods and increase the risk of inconsistent application.*

(7) "Oregon Homes Development" means a residential development type that would be approved to be placed on an Oregon Homes Lot including…
(8) "Oregon Homes Lot" means a lot or parcel that is…
(10) "Site plan" means a site or development plan that is drawn accurately to scale and include but are not limited to the following existing and proposed information:…
(13) "Usable outdoor space" means one of the following:…

*Issues/requested changes:*

- *Eligibility variables in these definitions function as numerous development standards and approval criteria, which should be relocated elsewhere and the definitions simplified.*

  *Beyond required home plan pre-approval, the definitions embed many qualifiers: housing type variables; minimum and maximum site sizes based on per-unit land area; minimum and maximum unit counts; unit size limits; average slope restrictions; natural resource and hazard considerations; demolition timing; a requirement that lots be vacant (which discourages retention of existing, typically more affordable homes); and required amenities. Verifying all these factors will demand significant staff time and effort.*

- *Definitions under (7) and (8) tie an Oregon homes application to a single lot, as with Middle Housing or a Middle Housing Land Division. Any intent to allow concurrent review of multiple Oregon Homes applications, or concurrent review with other actions entirely, should be clarified so that applications reviewed at the same time remain distinct and avoid conflicting procedural requirements for notice, hearing or appeal rights.*

**660-047-0020** Local Government Review Process

(1) Local governments must issue a land use decision… approving the development of an Oregon Homes Development… if the development proposal meets the applicable standards...

(2) Local governments shall review applications for Oregon Homes Development on an Oregon Homes Lot ~~local government~~ through completeness check, being no more rigorous than a ministerial review. Administration of this review shall only be to ensure compliance with standards provided in OAR 660-047-0020 through OAR 660-047-0050 and shall not require the use of discretion, interpretation, or the exercise of policy or legal judgment.

(5) Applicants shall bear the burden of proof to provide information necessary to determine compliance with the applicable provisions of this division.

(7) Nothing in this section precludes a local government from applying locally administered public facilities plans, including but not limited to public works design standards, final engineering plans, or requirements resulting from a traffic impact analysis during the development review processes for an Oregon Homes Development application. The order in which a local government applies these locally administered standards or plans during the application or review period is determined by the local government at their discretion. A local government shall not establish public facilities plans, final engineering plans, or traffic impact analysis requirements uniquely for an Oregon Homes Development that exceeds the process applied to all other residential development of the same type.

*Issues/requested changes: We request that the core set of requirements for Oregon Homes proposals be simplified and aligned with those used for other housing reviews.* ***If we want to encourage use of pre-approved plans for a range of ordinary home types, we should not ask for anything extraordinary in exchange.***

*Draft rules function like a Planned Development review, imposing extensive and highly specific requirements – such as dedicating 15% of the site as open space and stricter-than-usual tree retention, which may create costly tradeoffs and discourage developers from using pre-approved plans.*

*Further, characterization of this review as ministerial under (2), above, despite its considerable and unique requirements forces already-strained local budgets to subsidize the work and further stresses staff capacity. Although state staff suggests that assigning the burden of proof to applicants as reflected in (5) will reduce local effort, local codes already do this. LUBA has also confirmed that local governments must still determine whether that burden is met* (*Mingo v. Morrow County, 65 Or LUBA 122 (2012)), meaning the state's assumption does not actually reduce local staff workload.*

*A ministerial/Type I review does not historically allow for imposition of conditions of approval, which would be necessary to address provisions of (7), above, such as those "resulting from a traffic impact analysis during the development review processes." State statutes and rules increasingly blur the differences between ministerial and administrative decision types, and this compounds risk and complexity for local land use regulation.* ***We ask the state to provide a clear way to apply conditions, using the appropriate process.***

**660-047-0030** Design Standards

*1) All units within the development, unless an attached or detached accessory dwelling unit, must have their pedestrian entry orientation meet at least one of the following:*
*(a) Face the street;*
*(b) Be at an angle of up to 45 degrees from the street;*
*(c) Face a common open space that is adjacent to the street; or*
*(d) Open onto a covered porch or covered patio that is at least 25 square feet in area and have at least one entrance facing the street.*

*(2) Garages, carports, or on-site parking… if proposed… the combined width, …as measured at their widest dimension, shall not exceed a total of 50 percent of the street frontage. The following Oregon Homes Development scenarios are excluded from this standard:*
*(a) Accessible and adaptable units;*
*(b) Lots that receive vehicular access from an alley; and*
*(c) Off-street parking areas that are separated from the street lot line by a dwelling.*

*(3) Storage facilities for trash and recycling receptacles that are located within 20 feet of a street lot line or a lot line abutting residential property shall meet the following standards:*
*(a)…shall be screened from street lot lines and abutting residential properties by a wall, solid fence, or evergreen hedge. The screen must be at least 4 feet in height, except as specified in subsection (c) and located no more than 3 feet from the storage facility.*
*(b) The storage facility must be separated from the street lot line by at least 5 feet.*
*(c) For lot lines abutting residential properties, the storage facility must either be setback from the lot line by at least 5 feet, or the screen facing the lot line must be at least 6 feet in height.*

*(4) A local government shall approve an Oregon Homes Development application if the proposed site plan varies not more than 10 percent from the design standards described in this section.*

*<u>Issues/requested changes:</u> These extensive requirements add to the nature of this review as a Planned Development. We ask that requirements be simplified/reduced commensurate with the intended ministerial review. Ideally, local jurisdictions would be able to apply clear and objective design requirements they already have in place for similar developments. Many draft design requirements above appear more stringent than typical local requirements, several standards governing angles, and dimensions and percentages unique to this review add staff time to compliance verification, as does a variance allowance lacking clear and objective direction as to its application.*